

User Manual & Methodological Guide: AML / CFT Compliance

AED Oversight · Corporate Directorship Obligations · Revenue & Inflow Verification

NEW LIFE Sàrl · R.C.S. Luxembourg B 225.643 · Matricule National : 2018 2432 026

1. Luxembourg Legal Framework & AED Oversight

In the Grand Duchy of Luxembourg, the prevention of money laundering and terrorist financing (AML / CFT) is governed by the amended Law of 12 November 2004.

NEW LIFE Sàrl is a commercial company providing corporate directorship, strategic oversight, and business management services. Consequently, NEW LIFE Sàrl is not a banking or financial institution and is not subject to direct supervision by the CSSF.

The legally designated supervisory authority for NEW LIFE Sàrl is the AED (Administration de l'Enregistrement, des Domaines et de la TVA), pursuant to Article 2-1 (8) of the Law of 12 November 2004 governing trust and company service providers (TCSPs) and independent directors.

- Law of 12 November 2004: Foundational legislation defining Customer Due Diligence, internal organization, and reporting duties.
- Law of 13 January 2019 (RBE): Mandatory registration and verification of Beneficial Owners via the official LBR register.
- AED Circulars 779 & 800: Operational guidelines issued by the AED and annual AML risk self-assessment questionnaire.
- Financial Intelligence Unit (CRF): National authority for receiving and analyzing Suspicious Transaction Reports (STR).

AED Key Notice

The AED conducts periodic document audits and on-site inspections for professionals not supervised by CSSF.

2. Practical Compliance Obligations for NEW LIFE Sàrl

NEW LIFE Sàrl implements a Risk-Based Approach (RBA) structured around 4 core statutory obligations:

- Customer Due Diligence (CDD): Systematic collection of certified RCSL extracts, articles of association, and VAT numbers.
- Beneficial Ownership Verification (RBE): Identification of any natural person holding > 25% ownership or effective control.
- PEP & Sanctions Screening: Detection of Politically Exposed Persons and application of Enhanced Due Diligence (EDD).
- AML Thresholds: Layered vigilance: Standard (< .5k), Active vigilance (.5k-.10k), Statutory Due Diligence (.10k), Enhanced (.25k).
- 5-Year Record Retention: Statutory obligation to retain all KYC files for at least 5 years following mandate termination.

Legal Retention Period

All corporate extracts, RBE filings, identification proofs, and invoices must be retained for at least 5 years

3. User Guide for the AML Module in the Application

The aml.html module is tailored to monitor directorship mandates and fund inflows for NEW LIFE Sàrl:

- Descending Date Sorting: Operations for 2026 and the most recent invoices are presented at the top of the register.
- Dedicated Clean Scope: Exclusively tracks the 109 legitimate corporate fee invoices (manager expense advances and stornos are filtered out).
- Interactive KYC Modal: Instant one-click access to audit records with persistent browser storage (localStorage).
- Mandates Mapping: Detailed profile cards for all 14 client companies (Europa Plus, Pals Advisors, Ersel, BG SICAVs, SPFs, etc.).
- Multi-Format Exports: Immediate generation of 25-column Excel spreadsheets, CSV files, and Official PDF Reports.

4. Due Diligence Risk Simulator (Risk-Based Approach)

The 'Simulateur Due Diligence' tab calculates the AML/CFT risk score (0 to 100) for any prospective mandate across 5 key pillars:

- Legal Form: Regulated SICAV (+5 pts), Commercial Company SA/Sàrl (+10 pts), Family SPF (+15 pts), SCSp (+20 pts).
- Jurisdiction: Luxembourg / Eurozone (+5 pts), Switzerland / UK / USA (+10 pts), Non-EU Third Country (+35 pts).
- PEP Exposure: Involvement of a Politically Exposed Person (+35 pts and automatic trigger of Enhanced Due Diligence).
- Ownership Complexity: Direct ownership (+0 pts), Multi-tiered holding (+25 pts), Trust / Fiduciary structure (+30 pts).
- Annual Fee Volume: < ·25,000 (+0 pts), ·25,000 to ·50,000 (+10 pts), · ·50,000 (+15 pts).

Risk Categories

Score < 35: Low Risk (Standard CDD) | Score 35-59: Medium Risk | Score · 60 or PEP: High Risk (EDD).